IT is hereby notified that the Minister of Finance and Economic Development has, in terms of section 235, as read with section 120, of the Customs and Excise Act [*Chapter 23:02*], made the following regulations:—

1. These regulations may be cited as the Customs and Excise (Shoe Manufacturer) (Rebate) (Amendment) Regulations, 2021 (No. 1).

2. The Customs and Excise (Shoe Manufacturer) (Rebate) Regulations, 2017, published in Statutory Instrument 61 of 2017, are amended by the insertion after section 11, of a new section as follows—

"*Transparency and accountability in the utilisation of rebate facility*

12. (1) A manufacturer shall be required to present to the Minister responsible for Finance, an annual report in a form approved by the Minister, showing full particulars of all the benefits achieved in the utilisation of the rebate facility granted in terms of these regulations. The report shall be in such a manner that the effect on the following aspects on the manufacturer's business can be readily ascertained or accounted for to the satisfaction of the Minister—

(a) the incremental employment levels achieved by the manufacturer; and

(b) capacity utilisation levels attained from the use of the rebate; and

(c) value of new investment received since the implementation of the rebate; and

(d) growth in the manufacturer's output; and

(e) research and development initiatives carried out by the manufacturer.

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(2) If a manufacturer fails to produce the annual report in the manner approved in terms of subsection (1), the rebate shall be immediately withdrawn and any rebated goods received by the manufacturer during the period when the report was not so produced shall be deemed to have been used for a purpose other than that for which the rebate was granted. The manufacturer shall be required to pay the rebated revenue forthwith and the penalty for failure to keep records.

(3) The annual report by the manufacturer shall be submitted within thirty days from the end of the twelve months period calculated from—

(a) the 1st day of January 2021 in the first year; and

(b) thereafter from the 1st of January every year subsequently.".

3. The principal regulations are amended by the insertion in the Second Schedule of the following items—

"5209.42.00	Denim
6006.22.00	Other dyed knitted or crocheted fabrics
6006.90.00	Other knitted or crocheted fabrics
6406.90.00	Other parts of footwear.".